



CHAPTER xxxvii

An Act to amend the provisions of the West Bridgford Urban District Council Act 1913 and the West Bridgford Urban District Council Act 1927 relating to fares and charges on omnibuses and to make further and better provision for the health local government finance and improvement of their district and for other purposes. [31st July 1953.]

WHEREAS the urban district of West Bridgford (in this Act referred to as "the district") is under the government of the urban district council of West Bridgford (in this Act referred to as "the Council"):

And whereas by the West Bridgford Urban District Council Act 1913 (in this Act referred to as "the Act of 1913") and Part V of the Road Traffic Act 1930 the Council have established a transport undertaking and are running omnibuses within the district and on two routes in the city of Nottingham:

And whereas by the West Bridgford Urban District Council Act 1927 (in this Act referred to as "the Act of 1927") the Council were authorised to demand and take for passengers and parcels carried on the omnibuses of the Council fares and charges not exceeding those approved from time to time by the Minister of Transport:

And whereas it is expedient to repeal the provisions of the Act of 1913 and of the Act of 1927 in so far as they relate to fares and charges for passengers and parcels on the ordinary omnibuses of the Council and to authorise the Council to charge such fares and charges as hereinafter provided:

And whereas it is expedient that further and better provision should be made with reference to streets buildings sanitation and

for the health local government and improvement of the district and that the powers of the Council in relation thereto should be enlarged and extended :

And whereas it is expedient to make further provision with regard to the finances of the district as by this Act provided :

And whereas it is expedient that the other provisions contained in this Act be enacted :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

And whereas in relation to the promotion of the Bill for this Act the requirements of the Local Government Act 1933 have been observed :

May it therefore please Your Majesty that it may be enacted and be it enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

PART I

PRELIMINARY

Short and collective titles. 1.—(1) This Act may be cited as the West Bridgford Urban District Council Act 1953.

(2) The West Bridgford Urban District Council Act 1913 the West Bridgford Urban District Council Act 1927 and this Act may be cited together as the West Bridgford Urban District Council Acts 1913 to 1953.

Division of Act into Parts. 2. This Act is divided into Parts as follows :—

- Part I.—Preliminary.
- Part II.—Transport.
- Part III.—Streets.
- Part IV.—Buildings and drains.
- Part V.—Nuisance.
- Part VI.—Finance.
- Part VII.—Miscellaneous.
- Part VIII.—General.

Interpretation. 3.—(1) In this Act the several words and expressions to which meanings are assigned by section 343 of the Public Health Act 1936 have the same respective meanings unless there be something in the subject or context repugnant to such construction and in this Act unless the subject or context otherwise requires—

- “ Act of 1892 ” means the Private Street Works Act 1892 ;
- “ Act of 1913 ” means the West Bridgford Urban District Council Act 1913 ;
- “ Act of 1927 ” means the West Bridgford Urban District Council Act 1927 ;

- “ Act of 1933 ” means the Local Government Act 1933 ;
“ Act of 1936 ” means the Public Health Act 1936 ;
“ appointed day ” has the meaning which is assigned to it in section 23 (The appointed day) of this Act ;
“ clerk ” means the clerk of the Council and includes any person duly appointed by the Council to discharge temporarily the duties of such officer ;
“ contravention ” includes the failure to comply and “ contravene ” shall be construed accordingly ;
“ Council ” means the West Bridgford Urban District Council ;
“ county council ” means the county council of the administrative county of Nottingham ;
“ daily penalty ” means a penalty for each day on which any offence is continued after conviction ;
“ district ” means the urban district of West Bridgford ;
“ food ” has the meaning which is assigned to it by section 100 of the Food and Drugs Act 1938 ;
“ independent school ” has the meaning which is assigned to it by section 114 of the Education Act 1944 ;
“ Minister ” means the Minister of Housing and Local Government.

(2) Any reference in this Act to any enactment shall be construed as a reference to that enactment as applied extended amended or varied by or by virtue of any subsequent enactment including this Act.

PART II

TRANSPORT

4.—(1) In subsection (1) of section 5 (Power to provide and run motor omnibuses) of the Act of 1913 the words commencing with “ demanding and taking ” down to the end of that subsection and in subsection (4) of section 5 (Fares and charges &c.) of the Act of 1927 the words “ or by the provisions incorporated therewith ” are hereby repealed. Fares and charges.

(2) As from the first day of October nineteen hundred and fifty-three the said section 5 (Fares and charges &c.) of the Act of 1927 shall have effect as if the following were substituted for subsection (1) of that section :—

“ (1) Subject to the provisions of this section the Council may demand and take for passengers and parcels carried on the omnibuses of the Council (other than omnibuses reserved for any special purpose for which a road service licence is not required) such fares and charges as may from time to time be approved by the licensing authority for public service vehicles.”

PART III

STREETS

Fencing of
forecourts.

5.—(1) Where the forecourt of any premises abutting on a street in the district or any steps or projection or goods (whether for sale or not) placed in any such forecourt is or are a source of danger obstruction or inconvenience to the public the Council may by notice require the owner or occupier of the premises to fence the forecourt from the street.

(2) The provisions of section 290 of the Act of 1936 shall apply in relation to notices given under this section as they apply in relation to the notices mentioned in subsection (1) of that section.

Removal of
furniture etc.
from streets.

6.—(1) The Council may remove and store any furniture articles goods or other materials which may have been placed or left (whether accidentally or otherwise) in or upon any street in the district and which—

(a) may have remained there for more than forty-eight hours ; or

(b) are causing or are likely to cause an obstruction ;
and the Council shall not be liable for any loss or damage caused by such removal or storage.

(2) If the Council remove any furniture articles goods or other materials under the powers of this section—

(a) they shall if and as soon as it is reasonably practicable so to do notify the person whom they believe to be the owner thereof ; and

(b) they shall not exercise any power to sell any such furniture articles goods or other materials whether under section 276 of the Act of 1936 or otherwise until after the expiration of fourteen days from the date of such notification or three months from the day on which they removed the furniture articles goods or other materials whichever shall first occur.

Recovery of
expenses of
private street
works in
proportions
fixed by
agreement
in cases where
subsidence
necessitates
additional
works.

7.—(1) In any case where the Council—

(a) resolve under subsection (1) of section 6 of the Act of 1892 to do any one or more of the works specified in that subsection (therein and in this section referred to as “private street works”) with respect to a street or part of a street as defined in section 5 of that Act ; and

(b) include in the resolution a declaration that by reason of the subsidence of the surface of the whole or any part of the street or the part of a street mentioned in the resolution it is in their opinion necessary in order to enable

the private street works mentioned in the resolution to be done that the Council should execute works of raising or lowering such surface or any part thereof or altering the line or level of any sewer (not being a public sewer) or any drain or watercourse or any apparatus connected therewith in under or adjoining the street or the part of the street as the case may be (which works are in this section referred to as "the additional works") ;

the additional works shall be deemed for the purposes of the Act of 1892 and of this section to form part of the private street works and the Council shall not be required to comply with the requirements of subsection (3) of the said section 6 unless and until the Council pass a further resolution requiring compliance with the said subsection (3).

(2) If at any time before such a resolution as is last mentioned is passed by them the Council enter into agreements in writing with all the owners of those premises which are liable under subsection (2) of the said section 6 to be charged with any part or parts of the expenses of executing the private street works in the street or part of a street mentioned in the resolution firstly referred to in subsection (1) of this section by which agreements the Council agree to execute the said private street works (including the additional works) and the said owners respectively agree to pay to the Council the amounts thereby agreed being their appropriate proportions of the estimated expenses of the said private street works (including the additional works) as adjusted in the final apportionment in accordance with the provisions hereinafter contained and the Council serve notice on all such owners that such agreements have been made then—

- (a) the provisions of subsection (3) of section 6 and the provisions of sections 7 8 and 11 of the Act of 1892 shall not apply to such case ;
- (b) section 12 of the Act of 1892 shall for the purposes of such case be replaced by the following section :—

" 12.—(1) When the private street works (including the additional works) have been completed and the actual expenses thereof have been ascertained the surveyor shall certify to the urban authority the amount of such actual expenses and shall make a final apportionment of the amount so certified by adjusting in the manner hereinafter mentioned the amounts agreed under the said agreements to be paid by the owners respectively as their appropriate proportions of the estimated expenses.

(2) Such adjustment shall be made in such a way as to increase or (as the case may be) reduce the

PART III
—cont.

amount so payable by each owner by the same proportion (as in the provisional apportionment of the estimated expenses) of any sum by which the actual expenses of the works exceed or are less than the estimated expenses.

(3) Such final apportionment shall be conclusive for all purposes and notice thereof shall be served on the owners of the premises affected thereby and the sums apportioned thereby shall be recoverable in manner provided by this Act or in the same manner as private improvement expenses are recoverable under the Public Health Act 1936 including the power to declare any such expenses to be payable by instalments.” ;

(c) section 13 of the Act of 1892 shall apply to such a case as if in subsection (1) thereof—

(i) for the words “ included in the final apportionment ” there were substituted the words “ with the owners of which the urban authority entered into agreements in writing under the provisions of section 9 (Recovery of expenses of private street works in proportions fixed by agreement in cases where subsidence necessitates additional works) of the West Bridgford Urban District Council Act 1953 ” ;

(ii) for the words “ section two hundred and fifty-seven of the Public Health Act 1875 ” there were substituted the words “ section two hundred and ninety-one of the Public Health Act 1936 ” ;

(iii) the words “ or if objection has been made against the final apportionment with the sum determined to be due as from the date of the final apportionment ” were omitted.

**Recovery of
private street
works charges
where owner
unknown.**

8.—(1) Where any works have been completed by the Council under the Act of 1892 (whether before or after the passing of this Act) and the Council are unable to recover the amount due from the owner of any premises under that Act by reason of the fact that such owner is unknown and cannot after diligent inquiry made when the said amount became due and at reasonable intervals thereafter be found the Council may at any time after the expiration of twelve years from the date when the said amount became due apply to the county court and that court may on the receipt of such application and on being satisfied that the provisions of this subsection have been complied with make an order vesting the said premises in the Council absolutely and thereupon the Council may appropriate the said premises subject to and in accordance with the provisions of

section 163 of the Act of 1933 as if the said premises were land which was not required for the purpose for which it was acquired.

PART III
—cont.

(2) Where the county court make an order under subsection (1) of this section the court shall nominate a surveyor for determining the value of the said premises and such surveyor shall determine the same accordingly and shall annex to his valuation a declaration in writing subscribed by him of the correctness thereof and the Council shall thereupon deposit a sum equal to the amount of such valuation after deduction of the amount of the final apportionment in respect of the said premises with interest thereon for a period of six years at the rate of five per centum per annum or at such other rate as may have been fixed by order of the Minister under section 77 of the Public Health Act 1925 together with all costs and expenses reasonably incurred by the Council.

(3) Any sum to be deposited under subsection (2) of this section shall be deposited in accordance with section 76 of the Lands Clauses Consolidation Act 1845 as if it was a sum awarded to be paid to an owner who cannot be found and as if the Council were the promoters of an undertaking and such sum shall be applied in accordance with section 78 of the last-mentioned Act.

(4) The powers conferred by subsection (1) of this section shall be exercisable by the Council in addition to any existing rights powers and remedies for the recovery of expenses.

PART IV

BUILDINGS AND DRAINS

9.—(1) Where plans for the erection of a building are in accordance with building byelaws deposited with the Council and the plans show that the building will not be provided with such means of access for fire brigade appliances and personnel as the Council may after consultation with the fire authority consider necessary to enable effective action to be taken by the fire authority in case of fire at such building the Council shall reject the plans.

Precautions
against fire
in certain
buildings.

(2) If the Council reject the plans under the authority of this section the notice given in pursuance of subsection (2) of section 64 of the Act of 1936 shall specify that the plans have been so rejected.

10.—(1) Any premises in the district used principally for the preparation cooking and sale of fish potatoes or other similar commodities where quantities of heated or boiling fat or oil are used for the purpose of such preparation and cooking shall be provided with such portable efficient and adequate fire extinguishing apparatus and appliances as the Council may after consultation with the fire authority reasonably require.

Fire appliances
for certain
premises.

PART IV
—cont.

(2) The occupier of any such premises who shall fail to comply with any requirement under this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

(3) Any person aggrieved by a requirement of the Council under this section may appeal to a court of summary jurisdiction.

Further
provisions as to
means of escape
from fire in
certain
buildings.

11.—(1) Section 60 of the Act of 1936 shall have effect within the district as if the following were substituted for subsection (4) of that section:—

“(4) This section applies to any building which exceeds one storey in height and in which the floor of any upper storey is more than twenty feet above the surface of the street or ground on any side of the building and which—

(a) is let in flats or tenement dwellings ; or

(b) is used as an inn hotel boarding-house hospital nursing home children’s home aged persons’ home or similar institution or as an independent school or as a restaurant shop store office or warehouse.”

(2) Where expenditure is incurred by an owner in executing any works required to be executed in pursuance of a notice given under subsection (1) of section 60 of the Act of 1936 in relation to—

(a) any building let in flats or tenement dwellings ; or

(b) premises referred to in paragraph (b) of subsection (4) of the said section 60 as amended by this section ;

not being a building or premises in respect of which a notice could have been given under the said section before the coming into operation of this section the following provisions shall have effect:—

(i) In the case of expenditure incurred in relation to any such building as aforesaid let in flats or tenements such expenditure shall for the purpose of paragraph (a) of subsection (1) of section 2 of the Increase of Rent and Mortgage Interest (Restrictions) Act 1920 be deemed to be expenditure on the improvement of the dwelling-houses within such building and the owner of the building may apply to the county court for an order apportioning such expenditure on the several dwelling-houses comprised in such building and the court may on such application make such order as may be just and equitable in all the circumstances ;

(ii) In the case of expenditure incurred in relation to any premises mentioned in paragraph (b) of this subsection if the owner thereof alleges that any tenant of the premises should meet or contribute to meeting such

expenditure he may (without prejudice to any right of appeal against the notice served on him in pursuance of section 60 of the Act of 1936) apply to the county court for an order making such variations of the terms of the tenancy of the premises as may be reasonable having regard to the expense incurred in executing the works and to other relevant circumstances and the court may on such application make such order as may be just and equitable in all the circumstances.

PART IV
—cont.

(3) Section 128 (Further provisions as to means of escape from fire in case of certain buildings) of the Nottinghamshire County Council Act 1951 shall cease to have effect in the district.

(4) Section 16 (Means of escape from buildings in case of fire) of the Act of 1913 is hereby repealed.

12.—(1) Where it appears to the Council that any building in the district or any part of such building is in such a condition as to be dangerous to persons in such building or any adjoining premises or using any street upon which such building abuts the Council may until either—

Recovery of expenses of watching dangerous and dilapidated buildings.

(a) the building shall have been taken down secured or repaired in pursuance of section 75 of the Towns Improvement Clauses Act 1847 as incorporated in the Public Health Act 1875; or

(b) any order made by a court of summary jurisdiction under section 58 of the Act of 1936 in respect of such building shall have been complied with or executed;

employ and pay watchmen and do all such other acts as may be necessary to watch such building and may recover the expenses reasonably incurred by them in so doing from the owner of the building:

Provided that the Council shall forthwith give to the owner of any building notice that they propose to employ and pay watchmen or to do any other act in the exercise of the powers of this section to watch such building.

(2) In this section the expression "building" includes any structure.

PART V

NUISANCE

13.—(1) If it appears to the Council that there is in any garden or on any vacant site in the district an accumulation of rubbish which is unsightly or otherwise detrimental to the amenities of the neighbourhood and ought to be removed the Council may serve a notice on the owner or occupier of such garden or vacant site requiring him to remove it and if such

As to deposit of rubbish.

PART V
—cont.

owner or occupier cannot be found or fails to comply with such notice the Council may themselves do forthwith what they consider necessary to remove the accumulation and to prevent recurrence thereof.

(2) Notwithstanding anything in subsection (3) of section 276 of the Act of 1936 as applied by this Act that section shall apply to all rubbish removed by the Council under this section.

(3) This section shall not apply to rubbish accumulated on any land in the district in the course of building operations or a work of demolition so long as the operations are or the work is proceeding and for a reasonable period thereafter.

(4) In this section "rubbish" means any rubble metal wood glass china earthenware tin cardboard paper flock or other refuse and any organic matter (whether waste or dead animal) but does not include any such materials or things which have been accumulated for and are reasonably required for the carrying on of any business.

Control of
Council's
refuse tips.

14. The Council may in respect of any land in the district for the time being used by the Council as a refuse tip make byelaws prescribing the classes of persons entitled to enter on the land regulating the entry of such persons on such land and prohibiting any other persons from entering on such land or interfering with the refuse tips.

Smokeless
areas.

15.—(1) The Council may by order confirmed by the Minister prohibit the emission of smoke from premises to which the order applies.

(2) The occupier of any premises from which smoke is emitted in contravention of the provisions of an order under this section shall be liable to a penalty not exceeding ten pounds and to a daily penalty not exceeding five pounds:

Provided that it shall be a defence in any proceedings under this subsection to prove that the smoke emitted—

(a) arose solely from a furnace stove or other appliance suitable for burning an authorised fuel and properly maintained and used; and

(b) so arose either—

(i) by burning that authorised fuel therein; or

(ii) by burning any other type of fuel therein unless it is proved by the prosecutor that the authorised fuel was available to the defendant at the time the smoke was emitted.

In this subsection the expression "authorised fuel" means coke anthracite or any other fuel specified in the order as being an authorised fuel for the time being approved by the Council.

(3) The Council may if they think fit contribute the whole or part of the expense necessarily incurred by any person in executing works or in providing altering or adapting any fixtures fittings or appliances for the purpose of complying with the provisions of an order under this section.

(4) An order under this section may contain provisions—

- (a) for enabling the tenant of any premises incurring such expense as aforesaid and the owner of those premises to enter into and carry out an agreement making such variations in the terms of the tenancy of the premises as may be reasonable having regard to the expense incurred and to other relevant circumstances ;
- (b) for enabling any such tenant who has been unable to make such an agreement to apply to the county court for an order making such variations of the terms of the tenancy as aforesaid and for enabling the court to make such an order.

(5) An order under this section shall subject to the provisions of this section apply to all premises situated in such area or areas as may be specified in the order being either the whole of the district or any part or parts thereof :

Provided that as respects any particular premises or premises of any class so situated any such order may provide—

- (a) that they shall be excluded from the application of the order ; or
- (b) that the application of the order to them shall be deferred until such date as may be so specified.

(6) Before submitting an order to the Minister for confirmation under this section the Council shall publish in the London Gazette and in a local newspaper circulating in the district a notice stating—

- (a) that the order has been made and is about to be submitted to the Minister for confirmation ;
- (b) the area within which the order applies and the general effect of the order ; and
- (c) that within twenty-eight days beginning with a date specified in the notice (not being earlier than the publication of the notice in the local newspaper) any person may object to the confirmation of the order by giving notice in writing to the Minister and sending a copy of the notice of his objection to the clerk.

The Council shall also send a copy of the first-mentioned notice to the East Midlands Gas Board.

PART V
—cont.

(7) If no objection is duly made or if every objection so made is withdrawn the Minister may if he thinks fit confirm the order either with or without modification but in any other case he shall before confirming the order cause a local inquiry to be held and consider any objection not withdrawn and the report of the person holding the inquiry and may then confirm the order either with or without modification.

(8) If at any time after the passing of this Act any person owning or occupying premises in the district by application to the clerk specifying his name and address and the premises to which the application relates requests the Council to serve upon him a copy of any notice published in pursuance of subsection (6) of this section relating to an order affecting any premises so specified the Council shall—

- (a) register the name address and premises so specified in a register kept for the purpose ; and
- (b) serve upon him at the address entered in the register a copy of any such notice :

Provided that the accidental omission to serve a copy of a notice relating to any particular order on any person on whom it should have been served under paragraph (b) of this subsection shall not invalidate or prejudice the making or confirmation of the order.

(9) An order under this section may be varied or revoked by another order made by the Council and confirmed by the Minister in like manner and subject to the like provisions.

(10) An order under this section may also be varied by another order made by the Minister on the application of the British Electricity Authority or the East Midlands Gas Board in relation to any premises intended to be used by the British Electricity Authority as an electricity generating station or by the East Midlands Gas Board as a gasworks (as the case may be) for the purposes of their respective undertakings :

Provided that—

- (a) before making application to the Minister for an order under this subsection the said electricity authority or the said gas board (as the case may be) shall give notice to the Council of their intention to make the application stating the general effect of the order proposed ; and
- (b) before making the order the Minister shall consider any representations which may be made by the Council and shall give the Council an opportunity of being heard thereon.

(11) As soon as may be after an order under this section has been confirmed by the Minister the Council shall—

- (a) publish in a local newspaper circulating in the district a notice stating that the order has been confirmed and that a copy of the order may be inspected at all reasonable hours at a place in the district specified in the notice ; and
- (b) serve a like notice on every person who having given notice to the Minister of his objection to the order appeared at the local inquiry in support of his objection.

(12) An order under this section shall not come into operation before the expiration of six months from the date of the publication of notice of its confirmation under the last preceding subsection but shall come into operation on such date thereafter as may be specified in the order.

(13) Either—

- (a) a copy of any such newspaper containing a notice published therein in pursuance of this section ; or
- (b) a photostatic or other reproduction certified by the clerk to be a true reproduction of a page or part of a page of any such newspaper bearing the date of its publication and containing any such notice ;

shall be evidence of the publication of the notice and of the date of publication.

(14) Nothing in any order under this section shall apply to smoke emitted from a railway locomotive.

(15) The Minister shall not confirm an order under this section applying as from any date to premises used for any of the following processes that is to say :—

- (a) the working of a mine ;
- (b) the smelting of ores and minerals ;
- (c) the calcining puddling and rolling of iron and other metals ;
- (d) the conversion of pig iron into wrought iron or the re-heating annealing hardening forging converting and carburising of iron and other metals ;

if he is satisfied on an objection duly made under subsection (6) of this section that the application of the order to those premises as from that date would obstruct or interfere with that process.

PART VI

FINANCE

Power to
borrow.

16.—(1) The Council shall have power in addition and without prejudice to their powers of borrowing under the Act of 1933 to borrow without the consent of any sanctioning authority the sum requisite for the payment of the costs charges and expenses of this Act and they shall repay any sum so borrowed within such period as they may determine not exceeding five years from the passing of this Act.

(2) The provisions of Part IX of the Act of 1933 so far as they are not inconsistent with this Part of this Act shall extend and apply to money borrowed under this section as if it were borrowed under the said Part IX and the period fixed by the Council under this section for the repayment of any money borrowed under this section shall as respects that money be the fixed period for the purposes of the said Part IX.

Loans for
homes for
old people.

17. Section 17 (Loans for erection etc. of buildings) of the Nottinghamshire County Council Act 1951 in its application to the district shall be read and have effect as if in subsection (1) thereof—

(i) after the words “ money to ” there were inserted “ (a) ” ;

(ii) after the words “ building thereon ” there were inserted the following:—

“ (b) the trustees of any charity established for the welfare of old people for the purpose of enabling or assisting them to acquire land in the district and to erect new buildings on such land or to extend improve or adapt any existing building thereon for the accommodation of old people ” ;

(iii) after the words “ has been effected ” there were inserted the following:—

“ Provided that the local authority shall not make any loan under paragraph (b) of this subsection after the first day of August one thousand nine hundred and fifty-eight.”

PART VII

MISCELLANEOUS

Power to
require
removal etc.
of dangerous
trees.

18.—(1) If it appears to the Council that for the prevention of danger to persons generally or to property or for the prevention or abatement of a nuisance any tree in the district should be removed cut or felled the Council may serve a notice on the owner or occupier of the premises on which such tree is growing or situated requiring him within twenty-one days to remove cut or fell the tree or execute such other works as the Council may

consider necessary to prevent the danger or to prevent or abate the nuisance and in default of compliance with the notice the Council may themselves carry out the requirements of their notice doing no unnecessary damage and may recover from the owner or occupier upon whom the notice was served the expenses incurred.

(2) The provisions of section 276 of the Act of 1936 relating to the sale of certain materials as applied by this Act shall have effect as if the expression "materials" included "timber".

(3) The provisions of section 290 of the Act of 1936 shall apply in relation to notices given under this section as they apply in relation to the notices mentioned in subsection (1) of that section.

(4) The Council shall not take any action under this section except after consultation with the Trent River Board or the internal drainage board concerned where in the opinion of the Council the removal or cutting down of or the execution of works in relation to any tree—

- (a) will interfere with the exercise by the Trent River Board or the internal drainage board of their functions under any enactment ; or
- (b) will cause injury or damage to or otherwise interfere with any drainage work.

19.—(1) As from the appointed day any person intending to use any premises within the district—

Notification
of premises
for sale etc.
of food.

- (a) for the sale or offer or exposure for sale ; or
- (b) for the storage for purposes of sale ; or
- (c) for the preparation for sale ;

of any food (other than milk) intended for human consumption which premises were not so used immediately before the appointed day shall give not less than fourteen days' notice to the Council of his intention so to do.

(2) Any person who shall use any such premises for any of the purposes mentioned in subsection (1) of this section shall—

- (a) unless those premises were used for such purpose immediately before the appointed day ; or
- (b) unless he has given notice to the Council in accordance with subsection (1) of this section ;

be liable to a penalty not exceeding ten pounds.

(3) Nothing in this section shall apply to—

- (a) the sale or offer or exposure for sale or the storage for the purposes of sale in any premises used as a cinematograph theatre of ice-cream or sugar confectionery ; or

PART VII
—cont.

- (b) premises in respect of which there is a justices' licence for the sale of intoxicating liquor for consumption on the premises ; or
- (c) premises requiring to be registered by the Council under section 14 of the Food and Drugs Act 1938.

Entry on lands
for purpose of
survey etc.

20.—(1) Whenever it becomes necessary for the Council or any of their officers servants contractors or workmen to enter examine or lay open any lands in the district (not being lands on which buildings for manufacturing purposes are erected) for the purpose of making plans surveying measuring taking levels or making trial holes and the owner or occupier of such lands refuses to permit the same to be entered upon examined or laid open for the purposes aforesaid or any of them the Council may after written notice to such owner or occupier apply to a court of summary jurisdiction for an order authorising the Council to enter examine and lay open the said lands for the purposes aforesaid or any of them.

(2) If sufficient cause is shown for the application the court may make an order accordingly and on such order being made the Council or any of their officers servants contractors or workmen may at all reasonable times between the hours of nine in the forenoon and six in the afternoon enter examine or lay open the lands mentioned in such order for such of the said purposes as are therein specified without being subject to any action or molestation for so doing :

Provided that except in the case of emergency no entry shall be made or works commenced under this section unless at least twenty-four hours' notice of the intended entry and of the object thereof be given to the occupier of the lands intended to be entered.

(3) The Council shall at their own expense make good and restore to their former condition any lands laid open by them or their officers servants contractors or workmen and shall make good to the reasonable satisfaction of the owner or occupier of the lands entered all damages or loss sustained by him in consequence of such entry examination or laying open and any dispute as to the amount of damage or loss so sustained as aforesaid shall in default of agreement be assessed by a court of summary jurisdiction and the amount so assessed shall be recoverable in such court.

(4) (a) The Council shall not exercise the powers of this section—

- (i) in respect of any lands belonging to any statutory undertakers and used for the purpose of their undertaking except with the consent of the statutory undertakers concerned ; and

- (ii) in respect of any lands belonging to the county council except with the consent of the county council.

PART VII
—cont.

(b) Any consent required by this subsection shall not be unreasonably withheld and any question as to whether such consent is unreasonably withheld shall be determined by arbitration.

PART VIII

GENERAL

21. As respects byelaws made under this Act the confirming authority for the purpose of section 250 of the Act of 1933 shall be the Minister. Confirming authority for byelaws.

22.—(1) Section 300 of the Act of 1936 shall apply with respect to appeals to a court of summary jurisdiction under any enactment in this Act as it applies with respect to such appeals under any enactment in that Act and sections 301 and 302 of that Act shall apply accordingly. Appeals.

(2) Where any requirement refusal or other decision of the Council against which a right of appeal is conferred by this Act—

- (a) involves the execution of any work or the taking of any action ; or
- (b) makes it unlawful for any person to carry on any business which he was lawfully carrying on up to the time of the requirement refusal or decision or to use any premises for any purpose for which they were lawfully used up to that time ;

then until the time for appealing has expired or when an appeal is lodged until the appeal is disposed of or withdrawn or fails for want of prosecution—

- (i) no proceedings shall be taken in respect of any failure to execute the work or take the action nor shall the Council themselves execute the work or take the action ; and
- (ii) that person may carry on that business and use those premises for that purpose.

23.—(1) For the purposes of section 19 (Notification of premises for sale etc. of food) of this Act the expression “ the appointed day ” means such day as may be fixed by resolution of the Council subject to and in accordance with the provisions of this section. The appointed day.

(2) The Council shall cause to be published in a local newspaper circulating in the district notice—

- (a) of the passing of such resolution and of the date fixed thereby ; and

PART VIII
—cont.

(b) of the general effect of the provisions of this Act coming into operation as from that date ;

and the date so fixed shall not be earlier than the expiration of one month from the date of publication of the said notice.

(3) Either—

(a) a copy of any such newspaper containing any such notice ; or

(b) a photostatic or other reproduction certified by the clerk to be a true reproduction of a page of any such newspaper bearing the date of its publication and containing any such notice ;

shall be evidence of the publication of the notice and of the date of the publication.

Restriction
on right to
prosecute.

24. Proceedings in respect of an offence created by or under this Act shall not without the written consent of the Attorney-General be taken by any person other than a party aggrieved or the Council.

Application of
Arbitration
Act 1950.

25. Where under this Act any dispute or difference is to be referred to arbitration then unless other provision is made the reference shall be to a single arbitrator to be agreed upon between the parties to the dispute or difference or in default of such agreement to be appointed on the application of either party (after notice in writing to the other of them) by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1950 shall apply to such arbitration.

Application
of provisions of
Public Health
Act 1936.

26. The sections of the Act of 1936 hereinafter mentioned shall have effect as if they were re-enacted in this Act and in terms made applicable thereto (that is to say):—

Section 275 (Power of local authority to execute certain work on behalf of owners or occupiers) ;

Section 276 (Power of local authority to sell certain materials) ;

Section 277 (Power of councils to require information as to ownership of premises) ;

Section 283 (Notices to be in writing ; forms of notices &c.) ;

Section 284 (Authentication of documents) ;

Section 285 (Service of notices &c.) ;

Section 286 (Proof of resolutions &c.) ;

Section 287 (Power to enter premises) ;

Section 288 (Penalty for obstructing execution of Act) ;

- Section 289 (Power to require occupier to permit works to be executed by owner);
- Section 291 (Certain expenses recoverable from owners to be a charge on the premises: Power to order payment by instalments);
- Section 292 (Power to make a charge in respect of establishment expenses);
- Section 293 (Recovery of expenses &c.);
- Section 294 (Limitation of liability of certain owners);
- Section 295 (Power of local authority to grant charging orders);
- Section 296 (Summary proceedings for offences);
- Section 297 (Continuing offences and penalties);
- Section 299 (Inclusion of several sums in one complaint &c.);
- Section 304 (Judges and justices not to be disqualified by liability to rates);
- Section 328 (Powers of Act to be cumulative);
- Section 329 (Saving for certain provisions of the Land Charges Act 1925).

PART VIII
—cont.

27. This Act shall be deemed to be an enactment passed before and in force at the passing of the Town and Country Planning Act 1947 for the purposes of subsection (4) of section 13 and subsection (1) of section 118 of that Act.

Saving for
town and
country
planning.

28. The costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Council out of the general rate fund and general rate or out of moneys to be borrowed under the authority of this Act for that purpose.

Costs of Act.

Table of Statutes referred to in this Act

Title	Session and chapter
Lands Clauses Consolidation Act 1845	8 & 9 Vict. c. 18.
Towns Improvement Clauses Act 1847	10 & 11 Vict. c. 34.
Public Health Act 1875	38 & 39 Vict. c. 55.
Private Street Works Act 1892	55 & 56 Vict. c. 57.
West Bridgford Urban District Council Act 1913	3 & 4 Geo. 5 c. lviii.
Increase of Rent and Mortgage Interest (Restric- tions) Act 1920	10 & 11 Geo. 5 c. 17.
Land Charges Act 1925	15 & 16 Geo. 5 c. 22.
Public Health Act 1925	15 & 16 Geo. 5 c. 71.
West Bridgford Urban District Council Act 1927	17 & 18 Geo. 5 c. xxiv.
Road Traffic Act 1930	20 & 21 Geo. 5 c. 43.
Local Government Act 1933	23 & 24 Geo. 5 c. 51.
Public Health Act 1936	26 Geo. 5 & 1 Edw. 8 c. 49.
Food and Drugs Act 1938	1 & 2 Geo. 6 c. 56.
Education Act 1944	7 & 8 Geo. 6 c. 31.
Town and Country Planning Act 1947	10 & 11 Geo. 6 c. 51.
Arbitration Act 1950	14 Geo. 6 c. 27.
Nottinghamshire County Council Act 1951 ...	14 & 15 Geo. 6 c. xlv.

PRINTED BY HENRY GEORGE GORDON WELCH, C.B.E.

Controller of Her Majesty's Stationery Office and Queen's Printer of Acts of Parliament

LONDON: PUBLISHED BY HER MAJESTY'S STATIONERY OFFICE

Price 1s. 0d. net

PRINTED IN GREAT BRITAIN

(78803)

West Bridgford Urban District Council Act, 1953

1 & 2 ELIZ. 2 Ch. xxxvii

ARRANGEMENT OF SECTIONS

PART I

PRELIMINARY

Section

1. Short and collective titles.
2. Division of Act into Parts.
3. Interpretation.

PART II

TRANSPORT

4. Fares and charges.

PART III

STREETS

5. Fencing of forecourts.
6. Removal of furniture etc. from streets.
7. Recovery of expenses of private street works in proportions fixed by agreement in cases where subsidence necessitates additional works.
8. Recovery of private street works charges where owner unknown.

PART IV

BUILDINGS AND DRAINS

9. Precautions against fire in certain buildings.
10. Fire appliances for certain premises.
11. Further provisions as to means of escape from fire in certain buildings.
12. Recovery of expenses of watching dangerous and dilapidated buildings.

PART V

NUISANCE

13. As to deposit of rubbish.
14. Control of Council's refuse tips.
15. Smokeless areas.

PART VI

FINANCE

Section

- 16. Power to borrow.
- 17. Loans for homes for old people.

PART VII

MISCELLANEOUS

- 18. Power to require removal etc. of dangerous trees.
- 19. Notification of premises for sale etc. of food.
- 20. Entry on lands for purpose of survey etc.

PART VIII

GENERAL

- 21. Confirming authority for byelaws.
- 22. Appeals.
- 23. The appointed day.
- 24. Restriction on right to prosecute.
- 25. Application of Arbitration Act 1950.
- 26. Application of provisions of Public Health Act 1936.
- 27. Saving for town and country planning.
- 28. Costs of Act.